

was supported by a Notice, Declaration of Ryan McCoy, and a proposed order. The Petition is not opposed by Plaintiff.

Analyses

California Rules of Court, Rule 8.54(c) provides that “A failure to oppose a motion may be deemed a consent to the granting of the motion.” This principle is well-established in case law. *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257. The failure to file a timely opposition is “well-within” the court’s discretion to deem such inaction “tantamount to a concession that its position in the litigation was not substantially justified.” *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989)). Furthermore, a failure to address or oppose an issue in a motion constitutes a waiver of that issue. *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288. Similarly, a failure to support a point with reasoned argument and relevant authority also constitutes waiver. *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785.

Applied to the present matter, Plaintiff’s failure to file any opposition to the Petition to Confirm Arbitration Award is deemed to be her consent to the relief sought by the Petition.

Ruling

Based on the foregoing, the Court finds good cause to grant Defendant’s Petition to Confirm Arbitration Award. The Petition is **granted**. The Court will execute the proposed order lodged by Defendant on September 16, 2025 and orders the Defendant to file a Judgment accordingly.

9. 9:00 AM CASE NUMBER: C25-00150
CASE NAME: SABRINA BEISNER VS. BRIAN DOYLE
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: DOYLE, BRIAN
TENTATIVE RULING:

Introduction

Before the Court is all the captioned Defendants’ Demurrers and Motions to Strike. The Demurrers and Motions to Strike relate to Plaintiff’s FAC for seven causes of action for employment-related claims revolving around sexual batter and negligence.

For the following reasons, **Defendants’ Demurrer is sustained in its entirety with leave to amend.**

Meet and Confer Requirement

Defendants failed to satisfy their meet and confer requirements regarding their Demurrers and Motions to Strike. Defendants’ Counsel explained that their meet and confer effort with Plaintiff’s counsel consisted of one email meet and confer email sent on August 18, 2025. (Feenberg Decl. ¶ 2.) This effort is not statutorily complaint and is simply not enough.

This does not satisfy the requirements of Code of Civil Procedures section 430.41, as counsel never met and conferred with Plaintiff’s counsel in person, by telephone, or by video conference. (CCP § 430.41(a).)

The expected cooperation between the Parties is the breath that gives life to the meet and confer

process. The Court expects that the Parties will work cooperatively together to move this case along expeditiously going forward.

Statement of Facts

As alleged by Plaintiff, she was employed by Party Pros beginning in 2012, when she was a minor. (FAC ¶ 1.) At some point during her employment with Party Pros, Defendant Spencer "provided alcohol to Plaintiff and sexually assaulted Plaintiff, then a minor, while taking her along to work events pursuant to his employment with Defendants." (FAC ¶ 13.) After Plaintiff reported Mr. Spencer's misconduct to Defendant McMichael, Plaintiff was removed from events with Mr. Spencer. (FAC ¶ 15.) Mr. McMichael then took Plaintiff on work events and provided her with alcohol. (Id.)

At some point while Plaintiff was still a minor, Plaintiff engaged in a romantic relationship with Mr. McMichael. (FAC ¶ 16.) The relationship persisted after Plaintiff reached the age of majority. (FAC ¶ 17.) At some point, the relationship ended, and Plaintiff obtained a restraining order against Mr. McMichael due to his alleged harassment and threats against her. (FAC ¶ 18.) In November 2024, Plaintiff reported Mr. Spencer's conduct to Party Pros during a meeting where she reported Mr. Spencer's unsolicited sexual advances and sexual assaults to her supervisors. (FAC ¶ 19.) Plaintiff also advised Party Pros that other minor female employees had been sexually assaulted or subjected to unsolicited sexual advancements by Mr. Spencer. (FAC ¶ 20.) In response, Party Pros did not sever ties with Mr. Spencer. (FAC ¶ 21.) Plaintiff experienced severe emotional distress due to Mr. Spencer's sexual assaults, Mr. McMichael's improper relationship with her, and became an alcoholic as a result. (FAC ¶ 22.)

Legal Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("Doe")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A complaint must be "liberally construed" and a demurrer "overruled if any cause of action is stated by the plaintiff." (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP 430.40; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer may be filed to one of several causes of action in a complaint. (Cal. R. Ct. 3.1320(b).)

Analysis

Applicability of Workers' Compensation Exclusivity Exceptions

Defendants argue that all of Plaintiff's claims are preempted by the workers' compensation exclusivity doctrine. Workers' compensation provides the exclusive remedies for an employee's claims where the alleged wrongful conduct occurs at the worksite, in the normal course of the employer/employee relationship. (*Miklosy v. Regents of the University of California* (2008) 44 Cal. 4th 876, 902 ["Even if

such conduct may be characterized as intentional, unfair or outrageous, it is nevertheless covered by the workers' compensation exclusivity provisions."].) However, there are exceptions.

Civil actions are allowed where it is alleged the work-related injury was concealed, worsening the injury to the claimant or Plaintiff, in which case the employer's liability shall be limited to those damages proximately caused by the aggravation. (*Johns-Manville Products Corp. v. Superior Court* (1980) 27 Cal.3d 465, 469; See also Lab. Code § 3602(b)(2).) Labor Code section 3602(b)(1) provides that civil actions are permitted where the employer commits or ratifies a willful physical assault.

Here, Plaintiff argues she has pleaded allegations for both exceptions. Plaintiff alleges that Defendants TYRONE SPENCER and PATRICK MCMICHAEL sexually assaulted her. (FAC ¶¶ 12-18.) Plaintiff alleges that such conduct was concealed. (FAC ¶¶ 58-60.)

The Court takes the position that the FAC is so fact deficient that the Court does not have enough information to rule on whether the exceptions apply. This is a common and reoccurring theme throughout this analysis.

Plaintiff's General Allegations

When considering Plaintiff's factual allegations in the general allegations section of her FAC, the Court finds that all of Plaintiff's allegations regarding the sexual battery and battery claims are conclusory. (FAC ¶¶ 13, 16, 18.) Plaintiff does not provide any factual context to what her allegations of sexual assaulting, harassing, and grooming took place. (Id.)

Plaintiff's Battery and Sexual Battery Claims (Causes 1 and 2)

"A cause of action for sexual battery under Civil Code section 1708.5 requires the batterer intend to cause a 'harmful or offensive' contact and the batteree suffer a 'sexually offensive contact.' Moreover, the section is interpreted to require that the batteree did not consent to the contact." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1225 [internal citation omitted].)

"The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching." (*So v. Shin* (2013) 212 Cal.App.4th 652, 669.)

Here, Plaintiff fails to factually describe the harmful or offensive touching that she is complaining about. Plaintiff merely provides conclusory statements that she was sexually assaulted, harassed, and groomed. (FAC ¶¶ 13, 16, 18.) These allegations fail to state a cause of action for relief and fails to put Defendants on notice of what actions are subject to Plaintiff's complaints.

Plaintiff's Negligence Claims (Cause 3)

Plaintiff alleges Defendants Spencer and McMichael breached duties to Plaintiff "in their respective supervisory and management roles ... by grooming Plaintiff. providing her alcohol. subjecting her to sexual assault and manipulating her innocence.- (FAC ¶ 37.) These claims fail as to Mr. Spencer, Mr. McMichael and all other Defendants because they are derivative of the inadequately alleged claims for battery and sexual battery as discussed above.

Plaintiff's Negligent Hiring/Supervision Claim (Cause 4)

To establish such a claim, a plaintiff must "plead that she suffered a certain harm, that this harm was substantially caused by the defendant's employee, and that this harm would not have occurred if the

defendant had properly vetted, supervised, or retained the employee.” (*Lopez v. Watchtower Bible & Tract Soc’y of New York, Inc.* (2016) 246 Cal. App. 4th 566, 591.) The tort’s intent is to punish defendants who knew, or should have known, of their employee’s propensity to commit the harm in question but failed to take reasonable steps to prevent the harm from occurring to the plaintiff. (*Id.*)

First, there are no facts alleged to show that Party Pros knew or should have known that Messrs. Spencer or McMichael were unfit or had a propensity to commit the harm alleged by Plaintiff before hiring them. (*Evan F. v. Hughson United Methodist Church* (1992) 8 Cal.App.4th 828, 843 [liability for negligent hiring requires employer to know or have reason to know employee is unfit]; *Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1055 [“the cornerstone of a negligent hiring theory is the risk that the employee will act in a certain way and the employee does act in that way.”].)

Second, there are facts that Plaintiff did alert Defendants about the alleged wrongful conduct of Defendants Spencer and McMichael such as notifying McMichael about Spencer’s actions and notifying all Defendants about Spencer’s conduct towards Plaintiff and towards other women during a November 2024 meeting. (FAC ¶¶ 14-15, 19-21.) The Court cannot determine Defendants’ culpability for negligent hiring or supervision or Defendants sufficiency of their response of Plaintiff’s notification Plaintiff fails to factually describe the harmful or offensive touching that she is complaining about and therefore the Court cannot decide if the actions taken by Defendants in response to the Plaintiff’s notification were reasonable.

Plaintiff’s IIED and NIED Claims (Causes 5 & 6)

To state a claim or intentional infliction of emotional distress, a plaintiff must plead facts reflecting extreme and outrageous conduct with the intention of causing, or reckless disregard of the probability of causing, severe emotional suffering. (*Hughes v. Pair* (2009) 46 Cal.4th 1035). For conduct to be “outrageous” it must be “so extreme as to exceed all bounds of that usually tolerated in a civilized society.” (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.) The defendant also must have engaged in “conduct intended to inflict injury or engaged in with the realization that injury will result.” (*Christensen*, 54 Cal.3d at 903; see also, *Ochoa v. Superior Court* (1985) 39 Cal.3d 159, 165 fn. 5 [conduct must be of the type “especially calculated to cause, and does cause, mental distress of a very serious kind”].)

Negligent infliction of emotional distress is not an independent tort, rather it is a species of negligence, and has the same elements. (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 984.) “To recover damages for emotional distress on a claim of negligence where there is no accompanying personal, physical injury, the plaintiff must show that the emotional distress was ‘serious.’ [Citations.]” (*Wong v. Jin* (2010) 189 Cal.App.4th 1354, 1377.) “ ‘Serious mental distress may be found where a reasonable man, normally constituted, would be unable to adequately cope with the mental stress engendered by the circumstances of the case.’ [Citation.]” (*Molien v. Kaiser Foundation Hospitals* (1980) 27 Cal.3d 916, 928.) “Damages for emotional distress are permitted only where the injury is serious and there is some means for assuring the genuineness of the claim. [Citation.]” (*Mercado v. Leong* (1996) 43 Cal.App.4th 317, 326.)

Because Plaintiff fails to factually describe the harmful or offensive touching that she is complaining about, the Court is unable to analyze whether the Defendants’ conduct was extreme or outrageous, or whether the conduct was intentional or negligent. Plaintiff also failed to factually describe the nature and extent of her emotional suffering furthering limiting the Court to analyze whether the emotional suffering element would be met in either of Plaintiff’s claims for IIED or NIED.

Plaintiff's Negligence Per Se Claim (Cause 7)

Negligence per se requires: (1) a defendant violated a statute, ordinance, or regulation; (2) the violation proximately caused injury; (3) the injury resulted from an occurrence the enactment was designed to prevent; and (4) the plaintiff was a member of the class of persons the statute was intended to protect. (*Ramirez v. Nelson* (2008) 44 Cal. 4th 908, 917-18.) The first two elements are questions of fact, while the latter two are questions of law. (*Galvez v. Frields* (2001) 88 Cal.App.4th 1410, 1420.)

Plaintiff states that all Defendants had a statutory legal duty under California Penal Code 11164 et seq, to report "known or suspected child abuse or neglect." (FAC ¶ 58.) Penal Code section 11165.7 defines as a "mandated reporter" a series of occupations and positions that require mandatory reporting. Penal Code section 11165.7, subsection (49) states that "An adult person whose duties require direct contact with and supervision of minors in the performance of the minors' duties in the workplace of a business [...] is a mandated reporter of sexual abuse." Under Penal Code section 11166, "a mandated report shall make a report [...] whenever the mandated reporter [...] has knowledge of or observes a child whom the mandated reporter knows or reasonably suspects has been the victim of child abuse or neglect."

Plaintiff has failed to state a claim for violation of this statute because the FAC does not allege facts that any of the conduct defined as "child abuse or neglect," including "sexual abuse" or "sexual assault" as defined in section 11165.1, ever occurred. Plaintiff's conclusory references to Defendant Spencer having "sexually assaulted" her do not suffice to show conduct which (if disclosed or observed by an individual with a duty to report) triggers the mandatory reporting requirement. Plaintiff's conclusory references to Defendant McMichael "grooming" her suffers the same fate.

Plaintiff does not allege that she was a child at the time she made either of these disclosures, and she does not allege that any individuals at Party Pros were otherwise aware of, or observed the alleged abuse of Plaintiff, at any time prior to these disclosures. Thus, the FAC does not allege facts indicating that a duty to report ever arose by any individual at Party Pros. To the extent Plaintiff intends to assert that Mr. Spencer and Mr. McMichael each violated this statute by failing to report their own alleged abuse of Plaintiff while she was a minor, the claim fails because such conduct does not satisfy the element of a negligence per se claim which requires that the injury result from an occurrence the statute was designed to prevent. Construing the reporting statute to require perpetrators of abuse to self-report would conflict with Fifth Amendment rights against self-incrimination. (*Kassey S. v. City of Turlock* (2013) 212 Cal. App. 4th 1276, 1280).

Plaintiff does not allege her age or Defendant McMichael's age at the time she entered a relationship with him. Plaintiff fails to allege facts that would constitute as "sexual abuse" under subsection (d) of Penal Code section 261.5, as required by the statute for an otherwise consensual relationship to constitute sexual abuse which must be reported.

Conclusion

For the reasons analyzed above, **Defendants' Demurrer is sustained in its entirety with leave to amend.**